

Court No. - 39

Case :- WRIT - C No. - 3522 of 2019

Petitioner :- Gyan Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ramnath

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Heard Sri Ramnath, learned counsel for the petitioner, Sri Kamal Kesarwani, learned counsel for the respondents no.2 & 3 and the learned Standing Counsel for the respondent no.1.

The petitioner in the writ petition is seeking quashing of the recovery citation dated 22.12.2018 whereby a sum of Rs.1,21,821/- is sought to be recovered from the petitioner towards electricity dues.

It is stated that a First Information Report has also been lodged against the petitioner but thereafter the petitioner has also filed a complaint before the Chief Judicial Magistrate against the officials of the Electricity Department, which is stated to be still pending.

It is not disputed that the recovery is in pursuance of an allegation of theft. In our opinion, the petitioner has an alternative remedy by way of filing his representation/objection before the respondent no.2, Executive Engineer, Vidyut Nagriya Vitran/Vitran Khand, Dakshinanchal Vidyut Vitran Nigam Limited, Agra under Clause 6.8 of the Electricity Supply Code, 2005.

We, therefore, dispose of this writ petition with a direction that if the petitioner appears before the respondent no.2-Executive Engineer, Vidyut Nagriya Vitran/Vitran Khand, Dakshinanchal Vidyut Vitran Nigam Limited, Agra with his representation/objection as well as certified copy of this order on 13.02.2019 at 11.00 A.M., the respondent no.2 shall consider and decide the said representation/objection in accordance with law within a further period of two weeks.

Subject to the petitioner complying with the directions as given above, the impugned citation dated 22.12.2018 shall remain in abeyance and shall be subject to any final order which may be passed by the respondent no.2.

Order Date :- 31.1.2019/N Tiwari